

& 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.



CHAPTER civ.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Aberavon and Neath. A.D. 1921.
[19th August 1921.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888 : 51 & 52 Vict. c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2.—(1) The Neath (Extension) Order 1921 shall come into operation on the ninth day of November next following the date upon which an Act shall be passed into law adding to the Borough of Neath the part of the Briton Ferry Urban District referred to in the said Order as the excluded part of Briton Ferry. As to commencement of Neath Order and interim administration of part of Baglan Lower and Aberavon.

(2) Until the said Order shall come into operation the part of the Parish of Baglan Lower referred to in the said Order as the added part of Baglan Lower shall for all purposes be deemed to form part of the Parish and Urban District of Briton Ferry.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO.
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

—

(3) Until the said Order shall come into operation the part of the Borough of Aberavon referred to in the said Order as the added part of Aberavon shall for all purposes be deemed to form part of the Parish and Borough of Aberavon.

Short title.

3. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Aberavon and Neath Extension) Act 1921.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

SCHEDULE.

A.D. 1921.

BOROUGH OF PORT TALBOT.

*Provisional Order made in pursuance of the Local
Government Act 1888 for the extension of a Borough.*

*Port Talbot
Order.*

WHEREAS by virtue of Section 54 of the Local Government 51 & 52 Vict.
Act 1888 the Minister of Health is empowered to make a c. 41.
Provisional Order for altering the boundary of any Borough ;

And whereas the Borough of Aberavon in the Adminis-
trative County of Glamorgan is a Borough within the
meaning of the Local Government Act 1888 and the in-
habitants are a body corporate by the name of the Mayor
Aldermen and Burgesses of the Borough of Aberavon and act
by the Council of the said Borough which now consists of
the Mayor four Aldermen and twelve Councillors and the said
Borough is for the purposes of the election of Councillors divided
into two wards ;

And whereas the said Borough is co-extensive with the
Parish of Aberavon and is an Urban District under the
jurisdiction of the Mayor Aldermen and Burgesses acting by
the Council ;

And whereas the said Borough has a separate commission
of the peace ;

And whereas the unrepealed provisions of the Local Acts
specified in Part I. of the Schedule to this Order and of the
Confirmation Acts specified in Part II. of the said Schedule so
far as the last-mentioned Acts relate to the Orders specified in
that Schedule are in force in the said Borough ;

And whereas the provisions of—

(a) The Infectious Disease (Prevention) Act 1890 ;

(b) The Public Health Acts Amendment Act 1890 ; and

(c) The Private Street Works Act 1892 ;

are in force in the said Borough ;

And whereas the Urban District of Margam in the Adminis-
trative County of Glamorgan immediately adjoins the said
Borough and is co-extensive with the Parish of Margam and
is subject to the jurisdiction of the Urban District Council of
Margam ;

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

And whereas the Parishes of Michaelstone Lower and Baglan Lower in the Administrative County of Glamorgan immediately adjoin the said Borough and are contributory places in the Rural District of Neath and are subject to the jurisdiction of the Rural District Council of Neath;

And whereas by the Neath (Extension) Order 1921 it is provided that on the Ninth day of November 1921 the boundary of the existing Borough of Neath shall be altered so as to include in addition to other areas that part of the Parish of Baglan Lower which is not by this Order included in the Borough of Aberavon renamed Port Talbot and provision is thereby made for the abolition of the Parish Council of Baglan Lower:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

PART I.

INTERPRETATION AND COMMENCEMENT.

Application
of the Inter-
pretation Act
1889.

1. The Interpretation Act 1889 applies to the interpretation of this Order as it applies to the interpretation of an Act of Parliament and where by this Order any enactment or any provision in an Order is repealed or is to cease to have effect in an area Section 38 of the Act of 1889 shall apply as if this Order were an Act of Parliament.

Definitions.

2. In this Order unless the context otherwise requires—

“The Minister” means the Minister of Health;

“The commencement of this Order” means the Ninth day of November One thousand nine hundred and twenty-one;

“The existing Borough” means the Borough of Aberavon as it exists immediately prior to the commencement of this Order the area whereof is coloured pink and purple on the Borough maps;

“The Borough” means the existing Borough as altered by this Order and by the Neath (Extension) Order 1921 and renamed the Borough of Port Talbot;

“The acting town clerk” means the acting town clerk of the Borough;

“The Corporation” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;

[11 & 12 Geo. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

"The County" and "the County Council" mean respectively the Administrative County of Glamorgan and the County Council of that County;

A.D. 1921.
 —
*Port Talbot
 Order.*

"The Borough map" means the duplicate maps marked "Map of the Borough of Aberavon as altered by the Port Talbot (Extension) Order 1921 and by the Neath (Extension) Order 1921" and signed by the Most Noble Arthur Charles Duke of Wellington and sealed with the official seal of the Minister;

"The Ward maps" means the duplicate maps marked "Map of the Wards of the Borough of Aberavon as altered by the Port Talbot (Extension) Order 1921 and by the Neath (Extension) Order 1921" and signed by Sir Park Goff the Chairman of the Committee of the House of Commons and by the Most Noble Arthur Charles Duke of Wellington to whom the Bill for confirming this Order was referred;

"The Margam District" and "the Margam Council" mean respectively the Urban District of Margam which is coloured green on the Borough maps and the Urban District Council of that District;

"The Rural District" and "the Rural Council" mean respectively the Rural District of Neath and the Rural District Council of that District;

"The added areas" means the Margam District and the parts of the Rural District added to the existing Borough by this Order;

"The added part of Baglan Lower" means the part of the Parish of Baglan Lower which is coloured yellow on the Borough maps;

"The existing Parish of Aberavon" means the Parish of Aberavon (or Aberafon) as it exists immediately prior to the commencement of this Order and of the Neath (Extension) Order 1921 and "the Parish of Port Talbot" means the existing Parish of Aberavon as altered by this Order and by the Neath (Extension) Order 1921 and renamed;

"The existing Parish of Margam" and "the existing Parish of Baglan Lower" mean in each case the Parish as it exists immediately prior to the commencement of this Order;

"The existing Parish of Michaelstone Lower" means the existing Parish of Michaelstone Lower (or Michaelstone-super-Afon Lower) as it exists prior to the commencement of this Order and as coloured brown on the Borough maps;

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

"The Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

"The Act of 1907" means the Public Health Acts Amendment Act 1907 and "the Act of 1918" means the Representation of the People Act 1918;

"The Port Sanitary Authority" means the Swansea Port Sanitary Authority and "the Port Order" means the Order of the Local Government Board dated the 4th day of May 1898 by which the Port Sanitary Authority was constituted as amended by the Swansea (Extension) Order 1918.

Commence-
ment of
Order.

3. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty-one:

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty-one and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATIONS OF BOUNDARY.

Extension of
Borough.

4.—(1) The boundary of the existing Borough as altered by the Neath (Extension) Order 1921 shall be further altered so as to include in addition to that part of the existing Borough which is coloured pink on the Borough maps the Margam District and so much of the Rural District as comprises the existing Parish of Michaelstone Lower and the added part of Baglan Lower.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Deposit of
maps.

5.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Minister and the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

other shall be deposited by the acting town clerk at his office within fourteen days after the date of the Act of Parliament confirming this Order. A.D. 1921.
Port Talbot
Order.

(2) Copies of the Borough map deposited with the acting town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Minister of Agriculture and Fisheries.

(3) Copies of or extracts from the Borough map deposited with the acting town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. Copies of map to be evidence.

(4) All fees so received shall be carried to the credit of the borough fund.

6.—(1) The added part of Baglan Lower with the existing Parishes of Margam and Michaelstone Lower shall be amalgamated with the existing Parish of Aberavon. Parochial alterations.

(2) The Parish of Aberavon as extended by this Order shall from and after the commencement of this Order be known as the Parish of Port Talbot.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

7. The Borough shall for all purposes be known as the Borough of Port Talbot. Name of Borough

8. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices shall extend to and apply throughout the Borough : Powers and duties of justices &c. extended.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

—
Port Talbot
Order.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made :

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

County and
Borough Coun-
cils
(Qualification)
Act 1914.

9. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the Borough.

Number of
Councillors
and Aldermen.

10. The number of Councillors of the Borough shall be increased from twelve to eighteen and the number of Aldermen of the Borough shall be increased from four to six.

Division into
wards.

11. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

- (1) For the purposes of the election of Councillors the Borough shall be divided into six wards which shall be named respectively the Aberavon North Ward the Aberavon South Ward the Margam Central Ward the Margam North Ward the Margam West Ward and the Cwmavon Ward :
- (2) Each ward shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps :
- (3) Three Councillors shall be assigned to each of the said wards.

Election of
Councillors
in 1921

12. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and twenty-one the following provisions shall apply :—

- (a) The Acting Town Clerk and the Mayor of the existing Borough or such other persons as the Minister shall appoint shall perform the duties devolving upon the town clerk and mayor respectively under the Municipal Corporations Acts and the Mayor of the existing

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

Borough shall be the returning officer at the election for all the wards. Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards:

A.D. 1921.

Port Talbot
 Order.

(b) Eighteen Councillors of the Borough shall be elected on the First day of November One thousand nine hundred and twenty-one and six Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred and twenty-one:

(c) Notwithstanding anything in the Municipal Corporations Acts all the Councillors of the existing Borough who shall be in office immediately before the First day of November One thousand nine hundred and twenty-one shall go out of office on that day and all the Aldermen of the existing Borough who shall be in office on the Ninth day of November One thousand nine hundred and twenty-one shall go out of office on that day and all the said Councillors and Aldermen shall be eligible for election as Councillors of the Borough on the First day of November One thousand nine hundred and twenty-one.

13.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and twenty-one for each ward constituted by this Order shall retire as follows:—

Retirement
 of Coun-
 cillors and
 Aldermen
 elected in
 1921.

(a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twenty-two:

(b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twenty-four:

(c) The other Councillor for each ward on the First day of November One thousand nine hundred and twenty-three.

(2) The Aldermen elected for the Borough in the year One thousand nine hundred and twenty-one in pursuance of this Order shall retire as follows:—

(a) The three Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and twenty-four:

(b) The other three Aldermen on the Ninth day of November One thousand nine hundred and twenty-seven:

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

—
Port Talbot
Order.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and twenty-one or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Local Acts
and Orders.

14. Subject to the provisions of this Order—

- (1) The unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof :
- (2) The Margam Urban District Council Act 1911 shall be repealed except Section 18 of that Act and except such of the provisions of that Act as relate to the repayment of moneys borrowed thereunder before the commencement of this Order by the Margam Council or to the re-borrowing of those moneys or to the making of a return to the Minister with respect to those moneys and throughout the unrepealed provisions of the Act aforesaid a reference to the Corporation shall be substituted for any reference to the Margam Council.

Gas and
water under-
takings.

15.—(1) The gas undertaking of the Margam Council established under the Margam Urban District Council Act 1911 and the gas undertaking of the Rural Council carried on under the Ystradfellte Water Act 1902 shall by virtue of this Order be transferred to and vest in the Corporation and shall be held maintained and managed by the Corporation as part of their gas undertaking and such of the provisions of the Acts and Orders referred to in the Schedule to this Order as relate to the existing gas undertaking of the Corporation shall apply to their gas undertaking as extended by this Article.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(2) Section 39 and Sections 43 to 58 of the Ystradfellte Water Act 1902 shall be repealed and Sections 38 41 and 42 of that Act and the agreement set out in the First Schedule to the Act so far as the same are now in force and apply to the gas undertaking of the Rural Council shall have effect as if the Corporation were referred to therein instead of the Rural Council.

A.D. 1921.

Port Talbot
Order.

(3) The added part of Baglan Lower shall be excluded from the limits of the Briton Ferry Urban District Council for the supply of gas and water and the Parish of Michaelstone Lower shall be excluded from the limits of the Rural Council for the supply of water :

(4) Notwithstanding anything in this Order the Corporation may with the Neath Corporation or the Rural Council enter into and carry into effect agreements for the continuance for such period and upon such terms and conditions as may be agreed upon or in default of agreement may be determined by the Minister of a supply of water or gas to any premises in any of the added areas which prior to the commencement of this Order may be supplied with water or gas by the Neath Corporation or the Rural Council.

16. The rates and charges from time to time made by the Corporation for and in connection with the supply of gas and water within the area now forming the Urban District of Margam shall be the same as those for the time being charged under like circumstances in the area of the existing Borough.

Equality of
charges for
gas and
water.

17. Section 10 of the Glyncorrwg Urban District Council Act 1908 and the agreement set out in the First Schedule to that Act shall have effect as if for any references in the agreement to the Margam Council and the Margam District there were substituted references to the Corporation and the part of the Borough which comprises the area of the Margam District.

Agreement
between the
Margam and
Glyncorrwg
Councils as
to sewerage.

18. The agreement between the Glyncorrwg Urban District Council (hereinafter referred to as "the Glyncorrwg Council") and the Rural Council dated the Twelfth day of January One thousand nine hundred and sixteen with reference to the drainage of the parishes of Michaelstone Higher and Michaelstone Lower shall notwithstanding anything in this Order continue in full force and effect against and in favour of the Glyncorrwg Council but shall as from the commencement of this Order become and be binding upon the Corporation instead of the Rural Council so far as the agreement relates to the drainage of the part of the Borough which comprises the

For the
protection of
the Glyn-
corrwg Urban
District
Council.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921. area of the existing parish of Michaelstone Lower Provided
Port Talbot that :—
Order.

- (a) Of the total volume of 2·77 cubic feet per second of sewage and drainage mentioned in clause 1 of the said agreement the Corporation shall be permitted and allowed to communicate and discharge sewage and drainage of the said part of the borough into the sewer of the Glyncorrwg Council described in the agreement as the main trunk sewer not exceeding 2 cubic feet per second and the Rural Council shall be permitted and allowed to communicate and discharge sewage and drainage of the parish of Michaelstone Higher into the said sewer of the Glyncorrwg Council not exceeding ·77 cubic foot per second :
- (b) If the sum of ten thousand six hundred and seventy-six pounds which under the said agreement is required to be paid by the Rural Council to the Glyncorrwg Council on or before the Twelfth day of January One thousand nine hundred and twenty-one shall not have been paid by the Rural Council at the commencement of this Order such sum shall be paid to the Glyncorrwg Council as to seven thousand one hundred and seventeen pounds six shillings and eightpence thereof by the Corporation and as to three thousand five hundred and fifty-eight pounds thirteen shillings and fourpence thereof by the Rural Council within two months after the commencement of this Order and the Corporation and the Rural Council shall respectively pay to the Glyncorrwg Council interest on the said sums of seven thousand one hundred and seventeen pounds six shillings and eightpence and three thousand five hundred and fifty-eight pounds thirteen shillings and fourpence respectively at the rate of six and a half per centum per annum as from the date of the commencement of this Order until the date of payment of those respective sums :

If the Rural Council shall have paid to the Glyncorrwg Council the said sum of ten thousand six hundred and seventy-six pounds before the commencement of this Order the Corporation shall repay to the Rural Council the sum of seven thousand one hundred and seventeen pounds six shillings and eightpence with interest thereon at the rate of six and a half per centum per annum from the commencement of this Order until the date upon which

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

the Corporation repay such sum to the Rural Council and thereupon the Corporation shall be discharged from any obligation to pay such last-mentioned sum or any interest thereon to the Glyncorrwg Council :

A.D. 1921.

Port Talbot
Order.

- (c) The annual amount (not being less than the fifty-six pounds) mentioned in clause 6 of the agreement which is to be paid towards the maintenance of the main trunk sewer by the Corporation and the Rural Council and the proportions in which such amount is to be found by the Corporation and the Rural Council respectively shall be referred to and determined by the Minister of Health immediately after the commencement of this Order and the amount so determined shall be payable in the proportions so determined by the Corporation and the Rural Council respectively as from the commencement of this Order. At the expiration of five years after the commencement of this Order and at the expiration of any subsequent period of five years any of the said parties may apply to the Minister of Health for the revision of the said amount having regard to the annual cost to the Glyncorrwg Council of maintenance of the said sewer or for a variation of the proportions of the said amount to be paid by the Corporation and the Rural Council respectively having regard to the quantities of sewage and drainage discharged by the Corporation and the Rural Council respectively and the Minister shall accordingly determine what annual amount (not being less than fifty-six pounds) shall thenceforward be payable to the Glyncorrwg Council and the proportions in which it shall be found by the Corporation and the Rural Council respectively :

- (d) The annual amount of twenty-five pounds which under the said agreement is required to be paid by the Rural Council to the Glyncorrwg Council until the payment of the said sum of ten thousand six hundred and seventy-six pounds shall cease to be payable as from the commencement of this Order.

19.—(1) As from the commencement of this Order the Rural Council shall supply and the Corporation shall take all the water which may from time to time be required for distribution for domestic trade and public purposes within that part of the Borough which comprises the area of the existing parish of Michaelstone Lower. Provided that the Rural Council shall not be required to supply to the Corporation under this subdivision any greater quantity of water in any one day than twenty

As to water
 mains &c. in
 Michaelstone
 Lower.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921. gallons per head of the population in the said part of the
 ———
 Port Talbot Borough.

Order.

(2) The water to be supplied by the Rural Council to the Corporation as aforesaid shall be delivered at or near a point on the boundary of the existing parish of Michaelstone Lower near Pont-y-cwmmer Bridge or at such other point or points as may from time to time be agreed between the Corporation and the Rural Council and at a pressure sufficient to enable water to be distributed throughout the said part of the Borough in accordance with the obligations of the Corporation.

(3) All necessary meters and instruments for the purpose of measuring the water supplied to the Corporation under this Article shall be provided and maintained by the Rural Council but at the expense and to the reasonable approval of the Corporation which meters and instruments shall be of such description and shall be placed at such point or points as may be agreed between the Corporation and the Rural Council or failing agreement determined by arbitration and shall be open at all reasonable times to the inspection of the Corporation or their engineer or other persons duly authorised by them.

(4) The price to be paid by the Corporation to the Rural Council for water supplied under this Article shall be such price as may be agreed between the Corporation and the Rural Council or failing agreement determined by arbitration and shall be paid quarterly on the usual quarter days.

(5) All water rates meter rents and other charges in connection with the supply of water in the existing parish of Michaelstone Lower during the quarter current at the commencement of this Order shall be apportioned between the Corporation and the Rural Council up to and as from the commencement of this Order.

(6) Any dispute which may arise between the Corporation and the Rural Council under this Article and any matter to be referred to arbitration under this Article shall be referred to an engineer to be agreed on or failing agreement to be appointed by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to the reference.

Transfer
 of public
 elementary
 schools.

20. For the purposes and subject to the provisions of the Education Acts 1870 to 1919—

(1) All public elementary schools provided by the County Council as local education authority and situate in the Borough and the furniture fittings books and apparatus belonging to the County Council of any public

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

elementary school in the Borough shall by virtue of this Order be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority :

A.D. 1921.

Port Talbot
Order.

- (2) All contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school in the Borough or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school in the Borough shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :
- (3) Section 68 of the Local Government Act 1894 shall apply with respect to any adjustment required for the purposes of this Article :
- (4) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing on the said date shall be charged on the fund or rate out of which the expenses of the Corporation under the Education Act 1902 are payable and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :
- (5) In this Article "public elementary school" includes the site and schoolhouse and also any land acquired and held by the County Council as the local education authority for purposes of elementary education.

21. Subject to the provisions of the Education Acts 1870 to 1919—

Education
Scheme bye-
laws and
managers.

- (1) The Corporation shall as soon as possible after the commencement of this Order make a scheme under

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

Section 17 of the Education Act 1902 establishing an education committee or education committees and shall submit such scheme to the Board of Education for their approval :

- (2) Until such scheme comes into force the members of the Council of the Borough shall be the Education Committee under Section 17 of the Education Act 1902 :
- (3) Any byelaws in force in the Borough at the commencement of this Order shall remain in force until revoked or altered :
- (4) Every manager of any public elementary school in the Borough who was appointed by the County Council by either of the Urban Councils or by a Parish Council shall vacate office at the commencement of this Order.

Byelaws &c.

22. Subject to the provisions of this Order—

- (1) All byelaws with respect to new streets and buildings the alteration and the drainage of buildings and with respect to any slaughter-house in force in the existing Borough at the commencement of this Order shall for a period of one year from the date of the Act of Parliament confirming this Order extend and apply to the Borough unless previously repealed or altered but on the expiration of the period aforesaid shall cease to be in force within any part of the Borough :
- (2) Save as hereinbefore provided all byelaws and every scale of charges made by the Corporation which at the commencement of this Order are in force throughout the existing Borough shall apply to the Borough until such byelaws or scale of charges may be altered or repealed :
- (3) The byelaws and any scale of charges with respect to the cemetery at Goitre made by the Margam Council which are in force immediately before the commencement of this Order shall until such byelaws or scale of charges may be altered or repealed continue to apply to the said cemetery and shall have effect as if they had been made by the Corporation and as if the Corporation were referred to therein instead of the Margam Council but any other byelaws or scale of charges made by the Margam Council shall except as regards any work within the exception in subdivision (4) of this Article cease to have effect :

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

- (4) All byelaws made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been begun before that date but for which plans have been approved before that date by the Council or have been sent to their Surveyor or Clerk one month at least before that date and have not been disapproved by the Council :
- (5) As regards any work within the exception in subdivision (4) of this Article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the District in which the part is situated and that District :
- (6) All byelaws made by the County Council and in force immediately before the commencement of this Order in any part of the added areas shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force in such part :
- (7) Any proceedings which if this Order had not been made might have been taken by the County Council or the Margam Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for that Council :
- (8) In this Article "byelaws" includes any regulation or order and "scale of charges" includes any list of tolls or table of fees or payments.

A.D. 1921.

Port Talbot
Order.

23.—(1) The town clerk of the existing Borough shall be the acting town clerk and all other officers and servants of the Corporation of the existing Borough and the officers and servants of the Margam Council who hold office at the commencement of this Order shall continue to be or shall become the town clerk and officers and servants of the Corporation of the Borough until the first meeting of the Council held after the commencement of this Order.

Town clerk
and other
officers con
tinued.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

Borough
auditors.

Corporation
property &c.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall be the Borough auditors until the next ordinary election of Borough auditors.

24. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Jurisdiction
in added
areas pro-
perty &c.

25. Subject to the provisions of this Order—

(1) The Margam Council shall at the commencement of this Order be abolished and cease to exist and the Rural Council shall cease to exercise any powers or discharge any duties within any part of the added areas :

(2) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Margam Council and all property and liabilities which immediately before the said date are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in the Corporation as Urban Authority within the meaning of the Public Health Acts :

(3) Any property and liabilities vested in or attaching to the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

Advances
under the
Small
Dwellings
Acquisition
Act 1899.

26. Subject to the provisions of this Order—

(1) All the powers rights and liabilities of the Rural Council in respect of advances made by them before the commencement of this Order under the Small Dwellings Acquisition Act 1899 for the purchase of the ownership of any house in the parts of the Rural District added to the existing Borough by this Order shall vest in the Corporation subject to the payment by the Corporation to the Rural Council of the outstanding principal and interest of any such advance :

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(2) In respect of any advance by the Rural Council to which subdivision (1) of this Article applies the Corporation may exercise all such powers and remedies as would have been exerciseable by the Rural Council if this Order had not been made and as if the Corporation had become the local authority for the Borough for the purpose of the Small Dwellings Acquisition Act 1899:

A.D. 1921.

Port Talbot
Order.

(3) The estate or interest of the Rural Council in any house in the parts of the Rural District added to the existing Borough by this Order in respect of which the principal or interest of an advance made by the Rural Council is outstanding shall by virtue of this Order be transferred to and vest in the Corporation and any instrument subsisting at the commencement of this Order and vesting the ownership of any such house in the Rural Council shall have effect with the substitution of the Corporation for the Rural Council:

(4) The permission of the Corporation in lieu of the Rural Council shall be required to the transfer by a proprietor of his interest in a house to which this Article applies:

(5) For the purpose of defraying any payment to the Rural Council in pursuance of subdivision (1) of this Article the Corporation may borrow according and subject to the provisions of the Small Dwellings Acquisition Act 1899.

27. Subject to the provisions of this Order all arrears of rates made by the Margam Council and all other payments which at the commencement of this Order are due or owing to the Margam Council may be collected and recovered by the Corporation.

Sums due to
Margam
Council.

28.—(1) The liability for repayment of any moneys borrowed or owing by the Margam Council or by the Rural Council in respect of their gas undertaking carried on under the Ystradfellte Water Act 1902 or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred to and attach to the Corporation.

Mortgage
debts of
Margam
Council and
Corporation.

(2) So much as will at the commencement of this Order be outstanding in respect of any moneys borrowed or owing as aforesaid together with so much of any sums borrowed or owing by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough.

(3) So much of any sums borrowed or owing by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and so much of any sums borrowed or owing by the Corporation as will at the commencement of this Order be owing and charged upon any other rate levied within the existing Borough shall be charged upon the corresponding rate to be levied in the Borough.

(4) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

(5) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which shall be transferred to the Corporation in pursuance of subdivision (1) of this Article or the powers of any persons entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the Borough shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Adoptive
Acts.

29.—(1) The provisions of the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Private Street Works Act 1892 the Public Libraries Acts 1892 to 1919 and the Baths and Washhouses Acts 1846 to 1899 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

(2) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subdivision (1) of this Article which is in force at the commencement of this Order throughout the existing Borough shall extend and apply to the added areas and any such order in force on the day aforesaid in the added areas shall save as hereinbefore provided cease to be in force in those areas.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

(3) The Burial Acts 1852 to 1906 except such of the provisions thereof as are applicable to a cemetery provided under the Public Health (Interments) Act 1879 shall cease to be in force in any portion of the added areas.

A.D. 1921.

Port Talbot
Order.

30. The provisions of any order made before the commencement of this Order under Section 33 or Section 34 of the Act of 1894 on the application of—

Powers under
Section 33 or
34 of Act of
1894.

(a) The Corporation shall have effect as if any reference in that order to the existing Borough or to the existing Parish of Aberavon extended and applied to the Borough or to the Parish of Port Talbot as the case may be;

(b) The Margam Council shall cease to have effect.

31. Subject to any order which the Minister or the Secretary of State may make after the commencement of this Order—

Powers under
the Act of
1907.

(1) The provisions of any order made before the commencement of this Order and declaring to be in force in the existing Borough any Parts or Sections of the Act of 1907 shall have effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts or Sections were accordingly declared to be in force in the Borough:

(2) The provisions of any order made before the commencement of this Order and declaring to be in force in any part of the added areas any Parts or Sections of the Act of 1907 shall cease to apply to any such part and subject to the provisions of this Order the Parts or Sections declared by any such order to be in force shall cease to be in force in any such part.

32. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.

Orders made
under Shop
Hours Act
1904 or
Shops Acts
1912 to 1920.

33. The existing Parish of Michaelstone Lower and the added part of Baglan Lower shall cease to form part of the Neath and Briton Ferry Hospital District constituted under the Isolation Hospitals Acts 1893 and 1901 by order of the County Council dated the Fourteenth day of February One.

Neath and
Briton Ferry
Isolation
Hospital
District.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

—
Port Talbot
Order.

thousand nine hundred and thirteen and the said order shall be altered and have effect accordingly.

Port Sanitary
Authority.

34. Subject to the provisions of any order which the Minister of Health may hereafter make the Port Order shall be altered so that the following provisions shall take effect that is to say—

- (a) Every reference to the Margam Council shall be omitted ;
- (b) References to the Borough shall be substituted for references to the existing Borough ;
- (c) The Corporation shall be represented upon the Port Sanitary Authority by two members instead of one member and the persons who immediately before the commencement of this Order are members of the Port Sanitary Authority representing the Corporation of the existing Borough and the Margam Council shall represent the Corporation of the Borough upon the Port Sanitary Authority until the date upon which they would have retired from office if this Order had not been made.

Differential
rating.

35. The total amount in the pound of the general district rate or rates to be made and levied by the Corporation upon any rateable hereditament situate in the part of the Borough which comprises the existing Parish of Margam and the added part of Baglan Lower shall in each of the twelve years ending on the Thirty-first day of March Nineteen hundred and thirty-four be less than the total amount in the pound of the general district rate or rates to be made and levied by the Corporation in the same year upon any hereditament within the remainder of the Borough by the sum of One shilling and sixpence.

PART IV.

SUPPLEMENTARY PROVISIONS.

Guardians
and Rural
District
Councillors.

36.—(1) The number of elected Guardians of the Poor for the Neath Union shall be reduced from fifty-three to fifty-two.

(2) The Parish of Port Talbot shall for the purposes of the election of Guardians be divided into six wards which shall be respectively coterminous in area with and shall bear the same name as the wards into which the Borough is by this Order divided for the purpose of the election of Councillors.

(3) Two Guardians shall be assigned to each of the said wards.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(4) The persons who at the commencement of this Order hold the offices of Rural District Councillor and Guardian for the existing Parish of Michaelstone Lower shall cease to act as Rural District Councillors but shall continue to act as Guardians and together with the persons who at the commencement of this Order hold the office of Guardian for the existing wards of the existing Parishes of Aberavon and Margam shall be allocated by the Board of Guardians of the Neath Union at their meeting held next before the commencement of this Order to the wards of the Parish of Port Talbot constituted by this Order and the persons so allocated to each of these wards shall be deemed to be the Guardians elected for that ward.

A.D. 1921.

Port Talbot
Order.

(5) The person who at the commencement of this Order holds the office of Rural District Councillor and Guardian for the existing Parish of Baglan Lower shall at the said date go out of office.

(6) The persons referred to in subdivision (4) of this Article shall remain in office until the date on which they would have retired if this Order had not been made.

(7) If at the commencement of this Order any casual vacancy should exist in the representation on the Rural Council or on the Neath Board of Guardians of any existing Parish affected by this Order or any ward of such Parish an election to fill such casual vacancy shall not be held.

37. Subject to the provisions of this Order—

Parish Coun-
cils.

(1) The Parish Councils of the existing Parishes of Baglan Lower and Michaelstone Lower shall cease to exist and any powers and duties transferred by or under the Act of 1894 to the Parish Councils of the existing Parishes of Michaelstone Lower and Baglan Lower shall so far as regards the existing Parish of Michaelstone Lower and the added part of Baglan Lower be vested in and imposed on the persons and authorities in whom they would be vested or on whom they would be imposed if the said areas had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the said areas for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in the persons and authorities aforesaid :

(2) Any property or liabilities of the said Parish Councils held or incurred so far as regards the existing Parish of Michaelstone Lower and the added part of Baglan

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

Lower otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Order be transferred to and vest in the Corporation.

Audit of
accounts of
dissolved
authorities.

38. The accounts of the Margam Council and of the Parish Councils of Baglan Lower and Michaelstone Lower and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

Provided that the audit may in each case be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

Liquidation of
current debts
and liabilities.

39.—(1) The Margam Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

(2) The County Council the Corporation the Margam Council the Rural Council any Parish Council affected by this Order and the Guardians of the Neath Poor Law Union shall prior to the commencement of this Order make and levy such rates or issue such precepts or contribution orders as may be necessary to raise funds sufficient to defray all current debts and liabilities and the expenditure to be incurred before the First day of April One thousand nine hundred and twenty-two in respect of the areas affected by this Order.

(3) The Overseers of the Poor of any existing parish affected by this Order shall before the commencement of this Order make and levy such rate or rates as may be necessary to satisfy the requirements of any such precept or contribution order and also to raise funds sufficient to defray all current debts and liabilities incurred or to be incurred by such Overseers before the First day of April One thousand nine hundred and twenty-two.

(4) If default is made in complying with the provisions of this Article in respect of any area affected by this Order then—

(a) If such default is in relation to the levy of any rate or the issue of any precept for purposes of the Public Health Acts in the existing Borough or in an added area the Corporation shall after the commencement of this Order make and levy in the area of the existing Borough or in such added area (as the case

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

may be) a general district rate of such an amount in the pound as will be sufficient to defray such portion of the current debts liabilities and expenditure aforesaid as if such area were the Borough and the provisions of the Public Health Acts relating to general district rates shall apply to any general district rate authorised by this Article ;

(b) If such default is in relation to the issue of any contribution order or precept or the levy of any rate for purposes other than those of the Public Health Acts in the existing Parish of Aberavon or in an added area the Overseers of the Poor of the Parish of Port Talbot after the commencement of this Order on the receipt of a precept or contribution order from the Corporation or the Guardians of the Neath Poor Law Union shall make and levy in the area of the existing Parish of Aberavon or in such added area (as the case may be) a separate rate in the nature of a poor rate of such an amount in the pound as will be sufficient to meet the precept or contribution order and defray all current debts and liabilities and expenditure aforesaid which are chargeable on the poor rate as if such existing parish or added area were a separate parish.

(5) Except as provided by this Article a rate shall not be made after the commencement of this Order and before the First day of April One thousand nine hundred and twenty-two in the Borough or in the Parish of Port Talbot.

40.—(1) As soon as practicable after the commencement of this Order the County Council as regards any balance in their hands at the commencement of this Order raised to meet expenditure on elementary education and the Rural Council as regards any cash balance in their hands at the commencement of this Order shall estimate the proportion thereof derived from contributions paid by each of the added areas and subject to a deduction on account of undischarged liabilities in respect of that added area accruing up to the commencement of this Order shall transfer such amount to the Corporation.

(2) Any sum received after the commencement of this Order under a precept relating to elementary education by the County Council or under a precept by the Rural Council in respect of any area comprising one of the added areas shall be dealt with in the manner prescribed by subdivision (1) of this Article.

(3) The apportionment under this Article of any balance or sum received under a precept shall be subject to review on an adjustment under this Order.

A.D. 1921.

Port Talbot
Order.

Apportion-
ment of
balances and
sums received
under pre-
cepts.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

—
Port Talbot
Order.

Adaptation
of provisions
as to adjust-
ment.

41. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect—

- (a) As if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order; and
- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority, and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

Parochial
adjustments.

42. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish that section shall have effect—

- (a) As if the Overseers of the Parish of Port Talbot and the persons who immediately before the commencement of this Order were the Overseers of the existing Parishes of Margam Briton Ferry Michaelstone Lower and Baglan Lower or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the Minister were within the meaning of the said section as applied by this Article authorities affected by this Order;
- (b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Order were substituted for any fund mentioned in the section; and
- (c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

“ (6) If it is necessary for the purpose of giving
“ effect to any agreement or award for an adjust-
“ ment that a separate rate shall be levied in part

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

“ of a parish only the agreement or award may A.D. 1921.
 “ authorise the making of such a separate rate.
 “ as if it were a poor rate and as if the part of *Port Talbot*
 “ the parish on which it is to be levied were a *Order.*
 “ whole parish.”
 “ (7) Any capital sum paid for the purposes of
 “ any adjustment or in pursuance of any order
 “ or award of an arbitrator shall be applied by such
 “ person in such manner and for such purpose as
 “ the Minister of Health may authorise or direct.”

43. Until new valuation lists are in force the valuation *Valuation*
 lists of the existing Parishes of Aberavon Margam and Michael- *lists.*
 stone Lower and the portion of the valuation lists of the
 existing Parish of Baglan Lower which relates to hereditaments
 in the added part of Baglan Lower shall form the valuation list
 of the Parish of Port Talbot.

44.—(1) Subject to any future revision the basis or standard *County rate*
 of the county rate of the County shall be altered— *basis.*

(a) by the omission therefrom of the statements of the
 value of property in the existing Parishes of Margam
 and Michaelstone Lower ;

(b) by the deduction from the amounts respectively
 appearing therein as the net annual value of the
 agricultural land and of other hereditaments in the
 existing Parish of Baglan Lower of such sums as will
 represent the net annual value of the agricultural land
 and of other hereditaments in the added part of Baglan
 Lower ;

(c) by the addition to the amounts respectively appearing
 therein as the net annual value of the agricultural
 land and other hereditaments in the existing Parish
 of Aberavon of the net annual value of the agricul-
 tural land and other hereditaments in the Parishes of
 Margam and Michaelstone Lower and of the sums
 deducted under paragraph (b) of this subdivision of
 this Article ;

(d) by the substitution of the Parish of Port Talbot for the
 Parish of Aberavon.

(2) For the purposes of this Article the net annual value
 of the agricultural land in the added part of Baglan Lower shall
 be the amount which bears the same relation to the net annual
 value of agricultural land in the existing parish as the total
 rateable value of the agricultural land in such added part
 bears to the total rateable value of the agricultural land in the
 existing parish.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

A.D. 1921;
 Port Talbot
 Order.

(3) For the purpose of ascertaining the net annual value of hereditaments not being agricultural land in the added part of Baglan Lower subdivision (2) of this Article shall apply with the substitution for "agricultural land" of "hereditaments other than agricultural land."

(4) The amounts shown in the basis or standard of the County Rate of the County of the net annual value and the assessable value of the property in the Parish of Port Talbot shall be altered so as to correspond with the alterations in the net annual value of agricultural land and of hereditaments not being agricultural land made under this Article.

(5) In this Article "net annual value" and "assessable value" mean the net annual value and assessable value according to the basis or standard of the county rate of the County, and "total rateable value" means the total rateable value according to the valuation list of the parish in force when the basis or standard is being altered in pursuance of this Article.

Saving for
 existing jury
 lists.

45. For the purposes of the jury lists the parishes affected by this Order shall be deemed to continue unaltered until the next lists after the commencement of this Order come into force.

Settlement
 and removal
 of the poor.

46. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect:—

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any existing Parish affected by this Order by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in the existing Parish of Aberavon; or

(ii) in the existing Parish of Margam; or

(iii) in the existing Parish of Michaelstone Lower;

or

(iv) in the added part of Baglan Lower;

shall be deemed to have acquired or to be in the course of acquiring a settlement in the Parish of Port Talbot in each case as if the existing Parish or the specified part of the existing parish were and had always been part of the Parish of Port Talbot:

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

irremovability from the Neath Union by reason of residence in any of the areas mentioned in paragraphs (i) to (iv) of subdivision (1) of this Article shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the Parish of Port Talbot.

A.D. 1921.

Port Talbot
Order.

47. Any balances standing in the books of the Guardians of the Poor of the Neath Union at the commencement of this Order to the credit of the existing Parishes of Margam and Michaelstone Lower shall be carried to the credit of the Parish of Port Talbot and any balances owing by either of those existing parishes at that date shall be deemed to be owing by the Parish of Port Talbot.

Balances in
Guardians'
accounts.

48. Notwithstanding the alterations of area effected by this Order all contribution orders or precepts issued or made before the commencement of this Order shall be as valid as if this Order had not been made.

Saving for
contribution
orders and
precepts.

49.—(1) All arrears of rates made by the Overseers of the Poor of the existing Parishes of Margam and Michaelstone Lower and due at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parish of Port Talbot.

Arrears of
rates.

(2) All arrears of rates made by the Overseers of the Poor of the existing Parish of Baglan Lower and due at the commencement of this Order in respect of hereditaments in the added part of that Parish shall be collected and recovered by the Overseers of the Poor of the Parish of Port Talbot.

50.—(1) Any balances in the hands of the Overseers of the Parish of Baglan Lower immediately before the commencement of this Order and any sum collected after that date by Overseers of the Poor in respect of any rate made before that date and levied upon any rateable hereditament in that parish shall be a matter for adjustment under Section 62 of the Act of 1888.

Balances of
Overseers.

(2) Any balances at the commencement of this Order in the hands of the Overseers of the existing Parishes of Margam and Michaelstone Lower shall be duly accounted for and paid over to the Overseers of the Parish of Port Talbot and any balance at such date due to the Overseers of either of those existing Parishes shall be paid by the Overseers of the Parish of Port Talbot and all debts and liabilities of the Overseers of the said existing Parishes incurred in the discharge of their duties shall be a charge upon the poor rate of the Parish of Port Talbot.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Port Talbot
Order.

Provisions as
to register of
electors.

51.—(1) In the preparation of the autumn register for the year 1921 in pursuance of the Act of 1918 so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of Glamorgan to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(2) If any register of local government electors for any area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for a parish or ward or other electoral division the Town Clerk in the case of an election for a parish or ward or other electoral division within the Borough and the Registration Officer of the Parliamentary County in the case of an election for a parish or ward or other electoral division outside the Borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Acting Town Clerk or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Compensa-
tion to exist-
ing officers.

52.—(1) Subject to the provisions of this Order the provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Corporation or of the Margam Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation and in particular with such modifications as are necessary to provide that as from the commencement of this Order the officers and servants of the Corporation and of the Margam Council shall for the purposes of this Article and of the enactments applied by this Article be deemed to be existing officers of the Corporation of the Borough.

(2) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss.

A.D. 1921.

Port Talbot
Order.

(3) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Article regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned. Provided that for the purposes of this Article the expression "the Acts and Rules relating to Her Majesty's Civil Service" in subsection (1) of the said section 120 shall mean the Acts and rules relating to Her Majesty's Civil Service which were in operation at the date of the passing of the Act of 1888. Provided also in determining the compensation payable to any person referred to in subdivision (1) of this Article service under the Corporation of the existing borough or the Margam Council shall be aggregated with any service under the Corporation.

(4) Any person who devotes his whole time to two or more offices held under any Local Authority (as defined in Section 34 of the Local Loans Act 1875) or Local Authorities and who becomes entitled to compensation in pursuance of this Article may for the purposes of this Article and in respect of the offices or each of the offices (as the case may be) held by him be deemed to be a whole-time officer employed at the net salary or remuneration (after deducting any expenses or payments for assistance or otherwise) received by him in respect of that office.

(5) Where any such officer as aforesaid was temporarily absent from his employment whilst serving in His Majesty's Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the Local Authority during the War such period of temporary absence shall also be reckoned as service under the Local Authority in whose employment he was immediately before and after such temporary absence and the amount of his salary wages and emoluments during such temporary absence shall be deemed to be the amounts which the officer would have received from the Local Authority during that period if he had remained in the actual service of the Authority. Provided that this subdivision of this Article shall not apply to any officer who after the Armistice voluntarily extended his term of service in the Forces.

(6) Any compensation payable to any officer or servant whose office or employment relates wholly or partly to sanitary

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Port Talbot
Order.

purposes as defined by the Public Health Act 1875 shall be paid out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications.

(7) The non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(8) If any officer or servant to whom this Article applies is at any time within five years after the commencement of this Order required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which he is required to perform at the commencement of this Order he may within that period relinquish his office and any officer or servant who so relinquishes his office shall be entitled to compensation in accordance with the provisions of this Article.

(9) For the purposes of subdivision (2) of this Article any clerk to justices officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(10) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Actions &c.
not to abate.

53.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Margam Council or the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by either of the Councils aforesaid or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

may be continued and enforced as fully and effectually as if instead of the Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

A.D. 1921.
 ———
*Port Talbot
 Order.*

54. For the purpose of defraying any expenses under this Order which in the opinion of the Minister are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon :

Borrowing
 powers for
 purposes of
 Order.

Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Minister may determine.

55. Nothing in this Order shall be construed as restricting the powers of the Minister under the Acts relating to the Relief of the Poor or the powers of the Minister or of the County Council under the Act of 1888 or the Act of 1894.

Saving for
 powers of the
 Minister or
 County
 Council.

56. Nothing in this Order shall affect the powers of the County Council under Section 31 of the Act of 1918 or any order or scheme made by the County Council for the division of the Parliamentary County of Glamorgan into polling districts and the appointment of polling places for parliamentary elections.

Parliamen-
 tary polling
 districts.

57.—(1) The power of the Margam Council to appoint a school governor for the Port Talbot County School District under the Scheme of the Sixteenth day of December One thousand nine hundred and twelve regulating the Glamorgan Intermediate and Technical Education Fund shall be transferred to and vested in the Corporation without prejudice to the tenure of office of any school governor appointed by the Margam Council in office at the commencement of this Order.

Intermediate
 and technical
 education
 scheme.

(2) Save as aforesaid nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical
 divisions and
 charities.

58. Nothing in this Order shall affect the limits for the execution of the Neath Harbour Acts 1843 to 1901 or the constitution powers or duties of the Neath Harbour Commissioners under those Acts.

Saving for
 Neath Har-
 bour Com-
 missioners.

59. This Order may be cited as the Port Talbot (Extension) Order 1921.

Short title.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
*Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.*

A.D. 1921.

*Port Talbot
Order.*

The SCHEDULE.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title.
11 & 12 Vict. c. cxxxviii.	- The Aberavon Market Act 1848.
29 & 30 Vict. c. ccxl.	- The Aberavon Local Board Act 1866.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
39 & 40 Vict. c. lxxxvii.	The Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1876.	The Aberavon Order 1876.
43 & 44 Vict. c. lxxxvi.	The Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1880.	The Aberavon Order 1880.
47 & 48 Vict. c. ccxv.	The Local Government Board's Provisional Orders Confirmation (Aberavon &c.) Act 1884.	The Aberavon Order 1884.
49 Vict. c. xvii.	The Local Government Board's Provisional Orders Confirmation Act 1886.	The Aberavon Order 1886.
52 & 53 Vict. c. cvii.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1889.	The Aberavon Order 1889.
59 & 60 Vict. c. cviii.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896.	The Aberavon Order 1896.
63 & 64 Vict. c. liv.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1900.	The Aberavon Order 1900.
3 Edw. 7. c. lviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903.	The Aberavon Order 1903.
10 Edw. 7. & 1 Geo. 5. c. lxxviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1910.	The Aberavon Order 1910.
5 & 6 Geo. 5. c. iii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1915.	The Aberavon Order 1915.

Given under the Official Seal of the Minister of Health
this Twelfth day of May One thousand nine hundred
and twenty-one.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

BOROUGH OF NEATH.

A.D. 1921.

Provisional Order made in pursuance of the Local Government Act 1888 for the extension of a Borough. *Neath Order.*

WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough;

And whereas the Borough of Neath in the Administrative County of Glamorgan is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Neath and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) four Aldermen and eleven other Councillors and the said Borough is for the purposes of the election of Councillors divided into two wards;

And whereas the said Borough is co-extensive with the Parish of Neath and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council;

And whereas the said Borough has a separate commission of the peace and police force;

And whereas the Council of the said Borough are the Local Education Authority for the purposes of Part III. of the Education Act 1902;

And whereas—

(a) The unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Acts specified in Part II. of the said Schedule so far as the last-mentioned Acts relate to the Orders specified in that Schedule;

(b) The Infectious Disease (Prevention) Act 1890;

(c) The Public Health Acts Amendment Act 1890; and

(d) The Public Libraries Acts 1892 to 1919;

are in force in the said Borough;

And whereas the Borough of Aberavon is a borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Aberavon and act by the Council of the said Borough;

And whereas the Urban District of Briton Ferry immediately adjoins the Borough of Neath and the Borough of

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921. Aberavon immediately adjoins the Urban District of Briton Ferry ;
Neath Order.

And whereas the Borough of Aberavon is co-extensive with the Parish of Aberavon and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council ;

And whereas the Urban District of Briton Ferry is co-extensive with the Parish of Briton Ferry and is subject to the jurisdiction of the Urban District Council of Briton Ferry and the Council are the authority for the execution of the Burial Acts 1852 to 1906 within the Urban District ;

And whereas the Parishes of Llantwit Lower Baglan Lower and Clyne are contributory places in the Rural District of Neath and are subject to the jurisdiction of the Rural District Council of Neath ;

And whereas all the parishes hereinbefore mentioned are included in the Neath Poor Law Union ;

And whereas by the Port Talbot (Extension) Order 1921 it is provided that on the Ninth day of November 1921 the boundary of the existing Borough of Aberavon therein renamed Port Talbot shall be altered so as to include in addition to other areas that part of the Parish of Baglan Lower which is not by this Order included in the Borough of Neath :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

PART I.

INTERPRETATION AND COMMENCEMENT.

Application
of the
Interpreta-
tion Act
1889.

1. The Interpretation Act 1889 applies to the interpretation of this Order as it applies to the interpretation of an Act of Parliament and where by this Order any enactment or any provision in an Order is repealed or is to cease to have effect in an area Section 38 of the Act of 1889 shall apply as if this Order were an Act of Parliament.

Definitions.

2. In this Order unless the context otherwise requires—

“The Minister” means the Minister of Health ;

“The commencement of this Order” means the date prescribed by the Act of Parliament confirming this Order as the date upon which this Order shall come into operation ;

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

“The existing Borough” and the “existing Borough of Aberavon” mean the Borough of Neath or the Borough of Aberavon as the case may be as they exist immediately prior to the commencement of this Order and of the Port Talbot (Extension) Order 1921 ;

A.D. 1921.
Neath Order

“The Borough” means the existing Borough as extended by this Order ;

“The Corporation” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council ;

“The Aberavon Corporation” means the Mayor Aldermen and Burgesses of the existing Borough of Aberavon acting by the Council ;

“The County” and “the County Council” mean respectively the Administrative County of Glamorgan and the County Council of that County ;

“The Borough maps” means the duplicate maps marked “Map of the Borough of Neath as altered by the Neath (Extension) Order 1921” and signed by the Right Honourable the Earl of Wemyss and March the Chairman of the Committee of the House of Lords to whom the Bill for the confirmation of this Order was referred ;

“The Ward maps” means the duplicate maps marked “Map of the Wards of the Borough of Neath as altered by the Neath (Extension) Order 1921” signed by the Right Honourable the Earl of Wemyss and March the Chairman of the Committee of the House of Lords to whom the Bill for the confirmation of this Order was referred ;

“The Briton Ferry District” and “the Briton Ferry Council” mean respectively the Urban District of Briton Ferry and the Urban District Council of that District ;

“The Rural District” and “the Rural Council” mean respectively the Rural District of Neath and the Rural District Council of that District ;

“The added part of Llantwit Lower” and “the added part of Baglan Lower” mean the parts of those parishes which are respectively coloured dark brown and dark blue on the Borough maps and “the excluded part of Llantwit Lower” means the remaining part of the existing Parish of Llantwit Lower ;

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

“The added part of Aberavon” means the part of the existing Borough of Aberavon coloured light brown on the Borough maps and “the added part of Briton Ferry” means the part of the Briton Ferry District coloured yellow on the Borough maps and “the excluded part of Briton Ferry” means the remainder of that District;

“The added areas” means the added part of Aberavon the added part of Briton Ferry and the parts of the Rural District added to the existing Borough by this Order;

“The Parish of Neath” and “the Parish of Clyne” mean respectively each of these parishes as altered by this Order;

“The Parish of Port Talbot” means the existing Parish of Aberavon (or Aberafon) as altered by this Order and as altered and renamed by the Port Talbot (Extension) Order 1921;

“Existing” in relation to any parish district or other area means existing immediately before the commencement of this Order;

“The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same and “the Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

“The Act of 1907” and “the Act of 1918” mean respectively the Public Health Acts Amendment Act 1907 and the Representation of the People Act 1918;

“The Port Sanitary Authority” means the Swansea Port Sanitary Authority and “the Port Order” means the Order of the Local Government Board dated the 4th day of May 1898 by which the Port Sanitary Authority was constituted as amended by the Swansea (Extension) Order 1918.

Commence-
ment of
Order.

3. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the date prescribed by the Act of Parliament confirming this Order:

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

ordinary day of election in the year in which this Order shall come into operation and of the revision of the basis or standard of the county rate of the County this Order shall operate from the first day of August of that year. A.D. 1921.
Neath Order.

PART II.

ALTERATIONS OF BOUNDARY.

4.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area the added part of Aberavon the added part of Briton Ferry and so much of the Rural District as comprises the added part of Llantwit Lower and the added part of Baglan Lower. *Extension of Borough.*

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

5.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of the Act of Parliament confirming this Order. *Deposit of maps.*

(2) Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Town Clerk of Aberavon to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Minister of Agriculture and Fisheries.

(3) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. *Copies of map to be evidence.*

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

A.D. 1921.
 —
Neath Order.

(4) All fees so received shall be carried to the credit of the borough fund.

Parochial
 alterations.

6.—(1) The added parts of Llantwit Lower Baglan Lower Aberavon and Briton Ferry shall be amalgamated with the existing Parish of Neath.

(2) The excluded part of Llantwit Lower shall be amalgamated with the existing Parish of Clyne.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

Powers and
 duties of
 justices &c.
 extended.

7. The powers and duties of the justices of the peace appointed for the existing Borough and of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

County and
 Borough Coun-
 cils (Qualifica-
 tion) Act 1914.

8. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added areas shall be deemed to have always formed part of the Borough.

Number of
 Councillors
 and Alder-
 men.

9. The number of Councillors of the Borough shall be increased from twelve to eighteen and the number of Aldermen of the Borough shall be increased from four to six.

Division into
 wards.

10. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

(1) For the purposes of the election of Councillors the Borough shall be divided into three wards which shall respectively be named the Neath North Ward the Neath South Ward and the Briton Ferry Ward:

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(2) Each of the said Wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps : A.D. 1921.
Neath Order.

(3) Six Councillors shall be assigned to each of the said Wards.

11. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November of the year in which this Order shall come into operation the following provisions shall apply :— Election of Councillors and Aldermen.

(a) The Town Clerk and the Mayor of the existing Borough or such other persons as the Minister shall appoint shall perform the duties devolving upon the Town Clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough shall be the returning officer at the election for all the wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards :

(b) Eighteen Councillors of the Borough shall be elected on the First day of November in that year and six Aldermen of the Borough shall be elected on the Ninth day of November in that year :

(c) Notwithstanding anything in the Municipal Corporations Acts all the Councillors of the existing Borough who shall be in office immediately before the First day of November in that year shall go out of office on that day and all the Aldermen of the existing Borough who shall be in office immediately before the Ninth day of November in that year shall go out of office on that day and all the said Councillors and Aldermen shall be eligible for election as Councillors of the Borough on the First day of November in that year.

12.—(1) The Councillors elected for the Borough in the year in which this Order shall come into operation for each ward constituted by this Order shall retire as follows :— Retirement of Councillors and Aldermen.

(a) The two Councillors elected by the smallest number of votes on the First day of November in the year next ensuing :

(b) The two Councillors elected by the largest number of votes on the First day of November in the third year next ensuing :

(c) The other two Councillors on the First day of November in the second year next ensuing.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
 ———
Neath Order.

(2) The Aldermen elected for the Borough in the year in which this Order shall come into operation in pursuance of this Order shall retire as follows :—

(a) The three Aldermen elected by the smallest number of votes on the Ninth day of November in the third year next ensuing ;

(b) The other three Aldermen on the Ninth day of November in the sixth year next ensuing :

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November in the year in which this Order shall come into operation or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Local Acts
 and Orders.

13. Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation.

Water gas
 and electri-
 city under-
 takings of
 the Briton
 Ferry Coun-
 cil.

14. Subject to any adjustment consequent on the provisions of this Order and of the Port Talbot (Extension) Order 1921 :—

(1) The water undertaking of the Briton Ferry Council carried on under the Briton Ferry Urban District Council Act 1908 shall by virtue of this Order be transferred to and vest in the Corporation and shall be held maintained and managed by the Corporation as part of their water undertaking :

(2) The gas undertaking of the Briton Ferry Council carried on under the Briton Ferry Local Board Act 1873 and the Provisional Orders of the Local Government Board amending that Act shall by virtue of this Order be transferred to and vest in the Corporation and shall be held maintained and managed by the Corporation as part of their gas undertaking :

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

- (3) The electricity undertaking of the Briton Ferry Council carried on under the Briton Ferry Electric Lighting Order 1901 which was confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1901 shall by virtue of this Order be transferred to and vest in the Corporation and shall be held maintained and managed by the Corporation as part of their electricity undertaking : A.D. 1921.
Neath Order.
- (4) Such of the provisions of the Acts and Orders specified in the Schedule to this Order as relate to the existing water gas or electricity undertaking of the Corporation shall extend and apply to their water gas or electricity undertaking as extended by this Article :
- (5) The Briton Ferry Local Board Act 1873 and the Briton Ferry Urban District Council Act 1908 as amended by the Provisional Orders made by the Local Government Board for the amendment of those Acts and the Acts confirming those Provisional Orders in so far as they relate thereto shall be repealed except the provisions of those Acts and Orders with respect to the repayment of moneys borrowed thereunder before the commencement of this Order by the Briton Ferry Council or with respect to the re-borrowing of those moneys or to the making of a return to the Minister with respect to those moneys and throughout the unrepealed provisions of the Acts and Orders aforesaid a reference to the Corporation shall be substituted for any reference to the Briton Ferry Council :
- (6) The Electric Lighting Orders Confirmation (No. 2) Act 1901 so far as it relates to the Briton Ferry Electric Lighting Order 1901 shall be repealed.

15. Subject to any adjustment consequent on the provisions of this Order and of the Port Talbot (Extension) Order 1921 :—

- (1) So much of the Rural District as comprises the added part of Llantwit Lower and the added part of Baglan Lower shall be excluded from the limits of the Rural Council for the supply of electricity under the Neath Rural District Electric Lighting Orders 1901 and 1913 (which were confirmed by the Electric Lighting Orders Confirmation (No. 6) Act 1901 and the Electric Lighting Orders Confirmation (No. 4) Act 1913) and the South Wales Electrical Power Distribution Company Act 1908 and shall be included within the limits of the Corporation for the supply of electricity under such of the Acts specified in the Schedule to this Order as relate to the supply of electricity by the

Electricity
undertaking
of the Rural
Council.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

Corporation and the provisions of the said Acts and of any Provisional Order extending or amending the said Acts shall be altered and have effect accordingly :

- (2) Such of the provisions of the Acts and Orders specified in the Schedule to this Order as relate to the existing electricity undertaking of the Corporation shall extend and apply to the Borough :
- (3) Notwithstanding anything in this Order as from the commencement of this Order the Rural Council shall supply and the Corporation shall take in addition to any supply of electrical energy under the agreements dated the Sixteenth day of May One thousand nine hundred and eight and the Eleventh day of September One thousand nine hundred and twelve and made respectively between the Rural Council of the one part and the Corporation of the other part and between the Rural Council of the one part and the Briton Ferry Council of the other part or any extension thereof a supply of electrical energy in bulk for all purposes of supply within the added areas and for such period and upon such terms and conditions as shall be agreed upon between the Corporation and the Rural Council or in default of agreement as shall be determined by the Electricity Commissioners :
- (4) In the above-mentioned agreement dated the Eleventh day of September One thousand nine hundred and twelve or any extension thereof references to the Briton Ferry Council shall be construed as references to the Corporation :
- (5) Notwithstanding anything in subsection (2) of Section 6 of the said Act of 1908 or in any agreement scheduled to that Act it shall from the commencement of this Order be lawful (subject to the consent of the Electricity Commissioners) for the South Wales Electrical Power Distribution Company to give and for the Corporation to take a supply of electrical energy in bulk in such quantity for such period and at such price (not being greater than the maximum price named in the Second Schedule to the South Wales Electrical Power Distribution Company Act 1900) subject to such provisions as to the cost of constructing and maintaining main transmission lines or distribution lines and transformer stations whether within or without the area of the Borough and generally upon such terms (not being less favourable to the Corporation than the most favourable terms given by the Company in respect of a bulk supply to any local

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

authority whose circumstances are similar) as the Corporation and the Company may agree : A.D. 1921.

- (6) Nothing in this Order shall transfer to the Corporation any high tension mains belonging to the Rural Council and situate within the added areas. *Neath Order.*

16. The Aberavon Market Act 1848 and the Aberavon Local Board Act 1866 as amended by any Provisional Order made by the Local Government Board and confirmed by Parliament shall cease to be in force in or apply to the added part of Aberavon and that added part shall be excluded from the limits of the Aberavon Corporation for the supply of gas. *Aberavon local Acts and Orders.*

17.—(1) So much of the Rural District as comprises the added part of Llantwit Lower shall be excluded from the limits of the Rural Council for the supply of water under the Ystradfellte Water Acts 1902 and 1912 and shall be included within the limits of the Corporation for the supply of water under such of the Acts referred to in the Schedule to this Order as relate to the supply of water by the Corporation and the provisions of the said Acts and of any Provisional Order extending or amending the said Acts shall be altered and have effect accordingly. *Extension of limits of water supply by the Corporation.*

(2) Section 28 of the Ystradfellte Water Act 1902 shall be read as if the Corporation were referred to therein instead of the Briton Ferry Council.

(3) Notwithstanding anything in this Order as from the commencement of this Order the Rural Council shall supply and the Corporation shall take in addition to any supply of water under the agreement dated the eighth day of December nineteen hundred and fifteen and made between the Rural Council of the one part and the Corporation of the other part upon such terms and conditions as may be agreed upon or in default of agreement may be determined by the Minister all the water which shall from time to time be required by the Corporation for distribution for domestic trade and public purposes within any of the added areas which prior to the commencement of this Order was wholly or partly within the limits of the Rural Council for the supply of water.

18. Subject to the provisions of this Order—

Byelaws &c.

- (1) The byelaws made by the Corporation with respect to new streets and buildings which were confirmed by the Local Government Board on the Eighth day of January 1900 and with respect to new buildings which were confirmed by the Local Government Board on the Thirteenth day of August 1907 shall for a period of one year from the commencement of

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Neath Order.

this Order extend and apply to the Borough unless previously repealed or altered but on the expiration of the period aforesaid shall cease to be in force within any part of the Borough :

- (2) Save as hereinbefore provided all byelaws and every scale of charges made by the Corporation which at the commencement of this Order are in force throughout the existing Borough shall apply to the Borough until such byelaws or scale of charges may be altered or repealed :
- (3) All byelaws made by the Aberavon Corporation the Briton Ferry Council or the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the Borough or District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and have not been disapproved by the Council :
- (4) As regards any work within the exception in subdivision (3) of this Article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the Borough or District in which the part is situated and that Borough or District :
- (5) All byelaws made by the County Council and in force immediately before the commencement of this Order in any part of the added areas shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force in such part :
- (6) Any proceedings which if this Order had not been made might have been taken by the County Council by the Aberavon Corporation by the Briton Ferry Council or by the Rural Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this Article cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

Corporation had been substituted therein for that A.D. 1921.
 Council :

Neath Order.

- (7) In this Article "byelaws" includes any regulation or order and "scale of charges" includes any list of tolls or table of fees or payments.

19.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office for such period as may be necessary to enable them to complete the audit of the accounts of the Corporation of the Borough Treasurer and of their officers for the financial year then current and while in office shall for the purposes of those accounts be the borough auditors.

20. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exercisable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation
property &c.

21. Subject to the provisions of this Order—

- (1) The Briton Ferry Council shall at the commencement of this Order be abolished and cease to exist and the Aberavon Corporation and the Rural Council shall cease to exercise any powers or discharge any duties within any part of the added areas :

Jurisdiction
in added
areas pro-
perty &c.

- (2) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Aberavon Corporation as a municipal authority or an urban authority within the meaning of the Public Health Acts in relation exclusively to the added part of Aberavon shall by virtue of this Order be transferred to and vest in the Corporation and shall as the case requires be held by the Corporation as the municipal authority or urban authority of the Borough :

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Neath Order.

- (3) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Briton Ferry Council or the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in the Corporation as Urban Authority within the meaning of the Public Health Acts :
- (4) Any property and liabilities vested in or attaching to the Aberavon Corporation the Briton Ferry Council and the Rural Council in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

Advances
under the
Small
Dwellings
Acquisition
Act 1899.

22. Subject to the provisions of this Order—

- (1) All the powers rights and liabilities of the Rural Council in respect of advances made by them before the commencement of this Order under the Small Dwellings Acquisition Act 1899 for the purchase of the ownership of any house in the parts of the Rural District added to the existing Borough by this Order shall vest in the Corporation subject to the payment by the Corporation to the Rural Council of the outstanding principal and interest of any such advance :
- (2) In respect of any advance by the Rural Council to which subdivision (1) of this Article applies the Corporation may exercise all such powers and remedies as would have been exercisable by the Rural Council if this Order had not been made and as if the Corporation had become the local authority for the Borough for the purpose of the Small Dwellings Acquisition Act 1899 :
- (3) The estate or interest of the Rural Council in any house in the parts of the Rural District added to the existing Borough by this Order in respect of which the principal or interest of an advance made by the Rural Council is outstanding shall by virtue of this Order be transferred to and vest in the Corporation and any instrument subsisting at the commencement of this Order and vesting the ownership of any such house in the Rural Council shall have effect with the substitution of the Corporation for the Rural Council :

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(4) The permission of the Corporation in lieu of the Rural Council shall be required to the transfer by a proprietor of his interest in a house to which this Article applies : A.D. 1921.
Neath Order.

(5) For the purpose of defraying any payment to the Rural Council in pursuance of subdivision (1) of this Article the Corporation may borrow according and subject to the provisions of the Small Dwellings Acquisition Act 1899.

23. Subject to the provisions of this Order all arrears of rates made by the Briton Ferry Council or the Aberavon Corporation in respect of hereditaments in any part of the added areas and all other payments which at the commencement of this Order are due or owing to the Briton Ferry Council or the Aberavon Corporation in respect of any part of the added areas may be collected and recovered by the Corporation. Sums due to Urban Councils.

24. Subject to any adjustment which may be necessary under the provisions of this Order and of the Port Talbot (Extension) Order 1921-- Mortgage debts of Councils and Corporation.

(1) The liability for repayment of any moneys borrowed by the Briton Ferry Council or their predecessors or of so much of any of those moneys as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred to and attach to the Corporation :

(2) So much of any sums borrowed by the Briton Ferry Council for the purposes of or in connection with their gas and water undertakings as will at the commencement of this Order be owing shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough :

(3) So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough :

(4) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable :

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.

Neath Order.

- (5) Nothing in this Order shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which shall be transferred to the Corporation in pursuance of subdivision (1) of this Article or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Order had not been made and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the borough rate of the Borough shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

Adoptive
Acts.

25.—(1) The provisions of the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 and the Public Libraries Acts 1892 to 1919 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

(2) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subdivision (1) of this Article which is in force at the commencement of this Order throughout the existing Borough shall extend and apply to the added areas and any such order in force on the day aforesaid in the added areas shall save as hereinbefore provided cease to be in force in those areas.

(3) The provisions of the Private Street Works Act 1892 shall cease to be in force and apply to the added part of Aberavon.

Powers under
Section 33 or
34 of Act of
1894 and
under the
Act of 1907.

26. Subject to the provisions of any order which the Minister or the Secretary of State may make after the commencement of this Order:—

- (1) The provisions of any order made before the commencement of this Order under Section 33 or Section 34 of the Act of 1894 on the application of the Corporation shall have effect as if any reference in those provisions to the existing Borough and the existing Parish of Neath extended and applied to the Borough and the Parish of Neath as the case may be:

- (2) An order may be made by the Minister under Section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of any existing parish affected by this Order as if this Order had not been made:

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(3)—(a) The provisions of any order made before the commencement of this Order and declaring to be in force in the existing Borough any Parts or Sections of the Act of 1907 shall have effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts or Sections were accordingly declared to be in force in the Borough :

A.D. 1921.

Neath Order.

(b) The provisions of any order made before the commencement of this Order and declaring to be in force in any part of the added areas any Parts or Sections of the Act of 1907 shall cease to apply to any such part and subject to the provisions of this Order the Parts or Sections declared by any such order to be in force shall cease to be in force in any such part.

27. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.

Orders made under Shop Hours Act 1904 or the Shops Acts 1912 to 1920.

28. For the purposes and subject to the provisions of the Education Acts 1870 to 1919—

(1) All public elementary schools (including the sites and school-houses) provided by the County Council as local education authority and situate in the added areas and the furniture fittings books and apparatus belonging to the County Council of any public elementary school in the added areas shall by virtue of this Order be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority :

Transfer of public elementary schools &c. to Corporation.

(2) All contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school in the added areas or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school in the added areas shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

Existing contracts debts and liabilities of County Council to be carried into effect by and be discharged and satisfied by the Corporation as the local education authority.

[Ch. civ.] Ministry of Health [11 & 12 Geo. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

Mortgage
debts in
respect of
transferred
schools.

(3) Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of subdivisions (1) and (2) of this Article :

(4) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

(5) In the foregoing subdivisions of this Article "public elementary school" includes any land acquired and held by the County Council as the local education authority for purposes of elementary education :

Education
byelaws.

(6) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force :

Managers.

(7) Any managers of any public elementary school in the added areas who were appointed by the County Council the Briton Ferry Council or any Parish Council shall vacate office at the commencement of this Order.

Electoral
Divisions.

29. Subject to the provisions of Section 54 of the Act of 1888—

(1) Three County Councillors shall be apportioned to the Borough :

(2) The existing Neath (North) Neath (South) and Briton Ferry Electoral Divisions of the County shall be abolished and the Borough shall be divided into three Electoral Divisions which shall be named respectively the Neath (North Ward) the Neath (South Ward) and

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

the Neath (Briton Ferry) Electoral Division and shall be respectively co-terminous with the Municipal Wards of the Borough constituted by this Order : A.D. 1921.
Neath Order.

(3) The County Councillors who immediately before the commencement of this Order represent respectively the existing Neath (North) Neath (South) and Briton Ferry Electoral Divisions shall continue in office for the period for which they would have continued in office if this Order had not been made and shall be deemed to have been elected respectively for the Neath (North Ward) the Neath (South Ward) and the Neath (Briton Ferry) Electoral Divisions :

(4) The Vale of Neath Electoral Division of the County shall be altered by the exclusion of the added part of Llantwit Lower and the person who immediately before the commencement of this Order is the County Councillor representing that Electoral Division shall continue to represent that Division as so altered and as altered by the Port Talbot (Extension) Order 1921 as if he had been originally elected to represent the same.

30.—(1) Subject to any adjustment which may become necessary in consequence of this Order or of the Port Talbot (Extension) Order 1921 all property and liabilities which immediately before the commencement of this Order are vested in or attach to the Briton Ferry Council as a burial authority shall by virtue of this Order vest in and be transferred and attach to the Corporation as an urban authority within the meaning of the Public Health Acts and the Burial Acts except such of the provisions thereof as are applicable to a cemetery provided under the Public Health (Interments) Act 1879 shall cease to be in force in the area of the Briton Ferry District. Transfer of
property and
liabilities
under Burial
Acts to
Corporation.

(2) Subject to the provisions of this Order any burial ground vested in and transferred to the Corporation by virtue of subdivision (1) of this Article shall be held maintained and managed by the Corporation as if it were a cemetery acquired and constructed under the powers of the Public Health (Interments) Act 1879 and the provisions of that Act and of the enactments incorporated therewith or applied thereby shall extend and apply to the burial ground but not so as to require in relation to the burial ground or its use any such consent as is mentioned in Section 10 of the Cemeteries Clauses Act 1847.

(3) Until the Corporation in pursuance of the powers conferred on them by subdivision (2) of this Article make any byelaws regulations table of fees or charges in relation to any burial ground vested in and transferred to them under

[Ch. civ.] *Ministry of Health* [11. & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921. subdivision (1) of this Article all fees payments and sums fixed
Neath Order. and settled and receivable by the Briton Ferry Council as a
burial authority immediately prior to the commencement of
this Order shall be receivable by the Corporation.

(4) Nothing in this Order shall in relation to any burial
ground transferred to the Corporation by virtue of this Order
prejudice or affect any right of burial or of constructing a
place of burial or of erecting and placing any monument
gravestone tablet or inscription acquired before the commence-
ment of this Order.

(5) Nothing in this Order shall prejudicially affect any
right privilege authority or duty which immediately before the
commencement of this Order is exercisable by or attaches to
any incumbent or sexton under the Burial Acts.

*County
police.*

31.—(1) At the commencement of this Order such number
of the members of the police force of the County as shall be
determined by agreement to be made as soon as practicable
after the commencement of this Order between the Standing
Joint Committee of the County and the Watch Committee of
the existing Borough or in default of any such agreement as
shall be determined by a Secretary of State shall be transferred
to and become part of the police force of the Borough :

Provided that no member of the police force of the
County shall be transferred to or become a member of the
police force of the Borough under this subdivision unless
such member consents to be so transferred.

(2) Every member of the county police force so transferred
shall hold office in the police force of the Borough upon the
same tenure and upon the same terms and conditions as he
would have held office in the county police force if this Order
had not been made and while he performs the same or similar
duties his remuneration emoluments and allowances and the
pension (if any) to which he may be entitled shall not be less
than they would have been if this Order had not been made.

(3) The provisions of Section 15 (2) of the Police Act 1890
as amended by any subsequent Act shall extend and apply
to and in relation to any member of the police force trans-
ferred under the powers of this Article as if that member had
removed with the written sanction of the Chief Constable of
the County notwithstanding that at the date of such transfer
such member may not have served in such police force for the
minimum period prescribed by subsection (4) of Section 4 of
the Police Act 1890 as amended by the Police (Superannuation)
Act 1908.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

32.—(1) All the county police stations situate in any part of the added areas with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Order be transferred to and vest in the Corporation as from the commencement of this Order for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sums as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

A.D. 1921.

Neath Order.
 County police
 stations.

(2) In the event of the amount of the consideration for the transfer of the property which by virtue of this Article is transferred to and vested in the Corporation not being ascertained before the commencement of this Order the date of the final ascertainment of the consideration shall for the purposes of Section 12 of the Finance Act 1895 be treated as the date of vesting.

33. Subject to the provisions of any order which the Minister may hereafter make the Port Order shall be altered so that the following provisions shall have effect that is to say :—

Port Sanitary
 Authority.

- (a) Every reference to the Briton Ferry District and the Briton Ferry Council shall be omitted :
- (b) References to the Borough shall be substituted for references to the existing Borough :
- (c) The Corporation shall be represented upon the Port Sanitary Authority by two members instead of one member and the persons who immediately before the commencement of this Order are members of the Port Sanitary Authority representing the Corporation and the Briton Ferry Council shall represent the Corporation until the date upon which they would have retired from office if this Order had not been made.

34. The order of the County Council dated the Fourteenth day of February One thousand nine hundred and thirteen by which the existing Borough the Briton Ferry District and the Rural District were constituted a joint hospital district under the Isolation Hospitals Acts 1893 and 1901 shall be altered so that the following provisions shall have effect that is to say :—

Neath and
 Briton Ferry
 Isolation
 Hospital
 District.

- (a) Every reference to the Briton Ferry District and the Briton Ferry Council shall be omitted ;
- (b) References to the Borough as extended by this Order shall be substituted for references to the existing Borough ;

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

- (c) The Corporation shall be represented on the Hospital Committee by five members instead of three members and the persons who immediately before the commencement of this Order are members of the Hospital Committee representing the Corporation and the Briton Ferry Council shall represent the Corporation until the date upon which they would have retired from office if this Order had not been made.

PART IV.

SUPPLEMENTARY PROVISIONS.

Guardians.

35.—(1) The Parish of Neath shall for the purposes of the election of Guardians be divided into three wards which shall be respectively co-terminous in area with and shall bear the same name as the wards into which the Borough is by this Order divided for the purposes of the election of Councillors.

(2) Four Guardians shall be assigned to each ward.

(3) The five persons who at the commencement of this Order are holding the office of Guardian for the existing Wards of the existing Parish of Neath and the three persons who at that date are holding the offices of Rural District Councillor and Guardian for the existing Parish of Llantwit Lower shall be allocated by the Board of Guardians of the Neath Union at their meeting held next before that date as follows that is to say four to the Neath North Ward and four to the Neath South Ward and the persons so allocated shall be deemed to have been elected for those wards respectively.

(4) The four persons who are at the said date Guardians for the Parish of Briton Ferry shall continue to act as members of the said Board of Guardians and shall be deemed to have been elected for the Briton Ferry Ward.

(5) Any Guardian continued in office by this Article shall vacate office on the date upon which he would have retired from office if this Order had not been made.

(6) If at the commencement of this Order any casual vacancy shall exist in the representation on the Neath Board of Guardians of any existing parish mentioned in this Article or any ward of such parish an election to fill such casual vacancy shall not be held.

*Rural
District
Councillors.*

36.—(1) At the commencement of this Order the three Rural District Councillors representing the existing Parish of Llantwit Lower shall go out of office as Rural District Councillors and the number of elected members of the Rural Council shall be reduced by three.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(2) The person who at the commencement of this Order is the Rural District Councillor representing the existing Parish of Clyne shall be deemed to have been elected as Rural District Councillor for the Parish of Clyne and shall continue in office until the date on which he would have retired if this Order had not been made.

A.D. 1921.

Neath Order.

37. Subject to the provisions of this Order—

Parish Coun-
cils.

(1) The Parish Councils of the existing Parishes of Llantwit Lower and Baglan Lower shall cease to exist and any powers and duties transferred by or under the Act of 1894 to those Parish Councils shall so far as regards the added areas be vested in and imposed on the persons and authorities in whom they would be vested or on whom they would be imposed if the added areas had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred by those Councils so far as regards the added areas for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in the persons and authorities aforesaid :

(2) Any property or liabilities of the said Parish Councils held or incurred so far as regards the added areas otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Order be transferred to and vest in the Corporation :

(3) Any property or liabilities of the Parish Council of Llantwit Lower held or incurred so far as regards the excluded part of Llantwit Lower shall by virtue of this Order be transferred to and vest in the Parish Council of Clyne.

38.—(1) The Briton Ferry Council shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation
of current
debts and
liabilities.

(2) The County Council the Corporation the Aberavon Corporation the Briton Ferry Council the Rural Council any Parish Councils affected by this Order and the Guardians of the Neath Poor Law Union shall prior to the commencement of this Order make and levy such rates or issue such precepts or contribution orders as may be necessary to raise funds sufficient to defray all current debts and liabilities and the expenditure to be incurred before the First day of April next following the commencement of this Order in respect of the areas affected by this Order.

[Ch. civ.] *Ministry of Health* [11 & 12 Geo. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

(3) The Overseers of the Poor of any existing parish affected by this Order shall before the commencement of this Order make and levy such rate or rates as may be necessary to satisfy the requirements of any such precept or contribution order and also to raise funds sufficient to defray all current debts and liabilities incurred or to be incurred by such Overseers before the First day of April next following the commencement of this Order.

(4) If default is made in complying with the provisions of this Article in respect of any area affected by this Order the Overseers of the Poor of the Parish of Neath after the commencement of this Order may (and on receipt of a precept or contribution order from the Corporation or the Guardians of the Neath Poor Law Union shall) make and levy in the area of the existing Parish of Neath or in such added area (as the case may be) a separate rate in the nature of a poor rate of such an amount in the pound as will be sufficient to meet the precept or contribution order and defray all current debts and liabilities and expenditure aforesaid which are chargeable on the poor rate as if the existing parish or added area were a separate parish.

(5) Except as provided by this Article a rate shall not be made after the commencement of this Order and before the First day of April next following the commencement of this Order in the Borough or in the Parish of Neath.

Apportion-
ment of
balances and
sums re-
ceived under
precepts.

39.—(1) As soon as practicable after the commencement of this Order the County Council as regards any cash balance in their hands at the commencement of this Order raised to meet expenditure on elementary education and the Rural Council as regards any cash balance in their hands at the commencement of this Order shall estimate the proportion thereof derived from contributions paid by each of the added areas and subject to a deduction on account of undischarged liabilities in respect of that added area accruing up to the commencement of this Order shall transfer such amount to the Corporation.

(2) Any sum received after the commencement of this Order under a precept relating to elementary education by the County Council or under a precept by the Rural Council in respect of any area comprising one of the added areas shall be dealt with in the manner prescribed by subdivision (1) of this Article.

(3) The apportionment under this Article of any balance or sum received under a precept shall be subject to review on an adjustment under this Order.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

40. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect—

A.D. 1921.

Neath Order.

Adaptation
of provisions
as to adjust-
ment.

(a) As if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

41. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the abolition or the alteration of the area of any existing parish that section shall have effect—

Parochial
adjustments.

(a) As if the Overseers of the Parishes of Neath and Port Talbot and the persons who immediately before the commencement of this Order were the Overseers of the existing Parishes of Briton Ferry Llantwit Lower and Baglan Lower or if the circumstances of the case so require any persons who may be substituted for those persons by an order of the Minister were within the meaning of the said section as applied by this Article authorities affected by this Order;

(b) As if the poor rate or any other rate leviable in pursuance of the said section as applied by this Order were substituted for any fund mentioned in the section; and

(c) As if for subsections (6) and (7) of the said section there were substituted the subsections hereunto appended that is to say:—

"(6) If it is necessary for the purpose of giving
 " effect to any agreement or award for an adjust-
 " ment that a separate rate shall be levied in part of
 " a parish only the agreement or award may autho-
 " rise the making of such a separate rate as if it
 " were a poor rate and as if the part of the parish
 " on which it is to be levied were a whole parish."

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

“(7) Any capital sum paid for the purposes of
“ any adjustment or in pursuance of any order or
“ award of an arbitrator shall be applied by such
“ person in such manner and for such purpose as
“ the Minister of Health may authorise or direct.”

*Audit of
accounts of
the Corpora-
tion.*

42.—(1) From and after the Thirty-first day of March next following the commencement of this Order Sections 25 26 and 27 of the Municipal Corporations Act 1882 and Section 246 of the Public Health Act 1875 shall cease to apply to the accounts of the Corporation or of the treasurer of the Borough or of the officers of the Corporation.

(2) All such accounts under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with any other council shall be audited by a district auditor appointed by the Minister in like manner as accounts of an urban authority and their officers are audited under the Public Health Act 1875.

(3) Sections 247 and 250 of the Public Health Act 1875 and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the Borough and all ratepayers and owners of property in the Borough shall have the like rights and there shall be the same appeal as in the case of that audit:

Provided that the First Schedule to the District Auditors Act 1879 as applied by this Article shall be modified in the manner described in the Second Schedule to the Act of 1888.

(4) Nothing in this Article shall apply to the audit of the accounts of the Corporation for the financial year ending the Thirty-first day of March next following the commencement of this Order.

(5) The Corporation may out of the borough fund—

(a) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports of the proceedings of any such conferences or meetings :

A.D. 1921.

Neath Order.

- (b) Pay the reasonable expenses of the Corporation in connection with the presentation of the freedom of the Borough to persons whom they resolve to admit as honorary freemen and in the reception and entertainment of distinguished persons visiting the Borough.

43. The accounts of the Briton Ferry Council of the Parish Councils dissolved by this Order and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made :

Audit of
accounts of
dissolved
Authorities.

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough and shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

44. The Overseers of the Poor of the existing Parish of Clyne shall be deemed to have been appointed as Overseers of the Poor for the Parish of Clyne.

Overseers.

45. Until new valuation lists are in force—

- (1) The portions of the valuation lists of the existing Parishes of Llantwit Lower Baglan Lower Briton Ferry and Aberavon which respectively relate to hereditaments in the added areas shall form part of the valuation list of the Parish of Neath :
- (2) The remaining portion of the valuation list of the Parish of Llantwit Lower shall be part of the valuation list of the Parish of Clyne.

Valuation
lists.

46.—(1) Subject to any future revision the basis or standard of the County Rate of the County shall be altered—

County rate
basis.

- (a) by the deduction from the amounts respectively appearing therein as the net annual value of the agricultural land and of other hereditaments in the existing Parishes of Aberavon Baglan Lower Briton Ferry and Llantwit Lower of such a sum in each case as will represent the net annual value of the agricultural land and other hereditaments in the added parts

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
—
Neath Order.

of Aberavon Baglan Lower Briton Ferry and Llantwit Lower ;

- (b) by the addition to the amounts respectively appearing therein as the net annual value of the agricultural land and other hereditaments in the existing Parish of Neath of the sums deducted under paragraph (a) of this subdivision of this Article ;
- (c) by the addition to the amounts respectively appearing therein as the net annual value of the agricultural land and other hereditaments in the existing Parish of Clyne of such sum as will represent the net annual value of the agricultural land and other hereditaments in the excluded part of Llantwit Lower.

(2) For the purpose of this Article the net annual value of the agricultural land in the added parts of Llantwit Lower Baglan Lower Briton Ferry and Aberavon and in the excluded part of Llantwit Lower shall in each case be the amount which bears the same relation to the net annual value of the agricultural land in the existing parish as the total rateable value of the agricultural land in such added or excluded part bears to the total rateable value of the agricultural land in the existing parish.

(3) For the purpose of ascertaining the net annual value of hereditaments not being agricultural land in the added parts of Aberavon Baglan Lower Briton Ferry and Llantwit Lower and in the excluded part of Llantwit Lower subdivision (2) of this Article shall apply with the substitution for "agricultural land" of "hereditaments other than agricultural land."

(4) The amounts shown in the basis or standard of the County rate of the County as the net annual value and the assessable value of the property in the existing Parishes of Neath Aberavon and Clyne shall be altered so as to correspond with the alterations in the net annual value of agricultural land and of hereditaments not being agricultural land made under this Article.

(5) In this Article "net annual value" and "assessable value" mean the net annual value and assessable value according to the basis or standard of the County rate of the County and "total rateable value" means the total rateable value according to the valuation list of the parish in force when the basis or standard is being altered in pursuance of this Article.

Saving for
existing jury
lists.

47. For the purposes of the jury lists the Parishes affected by this Order shall be deemed to continue unaltered until the next lists after the commencement of this Order come into force.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

48. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect :—

A.D. 1921.
 —
Neath Order.
 Settlement
 and removal
 of the poor.

(1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any existing Parish affected by this Order by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation in the existing Parish of Neath or in any of the added areas shall be deemed to have acquired or to be in the course of acquiring a settlement in the Parish of Neath as if the existing Parish of Neath and the added areas were and had always been the Parish or parts of the Parish of Neath :

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in the existing Parish of Llantwit Lower by reason of any residence completed or in course of completion or of any act or thing done or in course of being done or of any status condition right or privilege acquired or created or in course of acquisition or creation in the excluded part of Llantwit Lower shall be deemed to have acquired or to be in course of acquiring a settlement in the Parish of Clyne as if such excluded part were and always had been a part of the Parish of Clyne :

(3) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Neath Union by reason of residence in any of the areas mentioned in subdivisions (1) and (2) of this Article shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the Parish in which by virtue of subdivision (1) or (2) of this Article he is to be deemed to have acquired or to be in the course of acquiring a settlement.

49.—(1) All arrears of rates made by the Overseers of the Poor of the existing Parishes of Llantwit Lower Baglan Lower and Briton Ferry and due at the commencement of this Order in respect of hereditaments in the added parts of those Parishes shall be collected and recovered by the Overseers of the Poor of the Parish of Neath.

Arrears of
 rates.

[Ch. civ.] Ministry of Health [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

(2) All arrears of rates made by the Overseers of the Poor of the existing Parish of Aberavon due at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Parish of Port Talbot as if this Order had not been made.

(3) All arrears of rates made by the Overseers of the Poor of the existing Parish of Llantwit Lower and due or owing at the commencement of this Order in respect of hereditaments in the excluded part of Llantwit Lower shall be collected and recovered by the Overseers of the Poor of the Parish of Clyne.

Balances in
Guardians'
accounts.

50. Any balances standing in the books of the Guardians of the Poor of the Neath Union at the commencement of this Order to the credit of the existing Parishes of Llantwit Lower Baglan Lower Briton Ferry and Aberavon and any balances owing by any of those existing parishes at that date shall be a matter for adjustment under Section 62 of the Act of 1888.

Saving for
contribution
orders and
precepts.

51. Notwithstanding the alteration of areas effected by this Order all contribution orders or precepts issued or made before the commencement of this Order shall be as valid as if this Order had not been made.

Balances of
Overseers.

52. Any balances in the hands of the Overseers of the Parishes of Llantwit Lower Baglan Lower Briton Ferry and Aberavon immediately before the commencement of this Order and any sum collected after that date by Overseers of the Poor in respect of any rate made before that date and levied upon any rateable hereditament in those parishes shall be a matter for adjustment under Section 62 of the Act of 1888.

Provisions as
to register
of electors.

53.—(1) In the preparation of the autumn register for the year in which this Order shall come into operation in pursuance of the Act of 1918 so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of Glamorgan to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(2) If any register of local government electors for any area affected by this Order is not so framed as to show the persons entitled to vote at an election to be held for a parish or ward or other electoral division the Town Clerk in the case of an election for a parish or ward or other electoral division within the Borough and the Registration Officer of the Parliamentary County in the case of any election for a parish or ward or other electoral division outside the Borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement. A.D. 1921.
Neath Order.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

54.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of the Briton Ferry Council with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation. *Transfer of officers and compensation to existing officers.*

(2) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss.

(3) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Article regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888 and the compensation shall not exceed the limit therein mentioned :

Provided that for the purposes of this Article the expression "the Acts and Rules relating to Her Majesty's Civil Service" in subsection (1) of the said Section 120 shall mean the Acts and Rules relating to Her Majesty's Civil Service which were in operation at the date of the passing of the Act of 1888.

(4) Any person who devotes his whole time to two or more offices held under any Local Authority (as defined in Section 34 of the Local Loans Act 1875) or Local Authorities and who becomes entitled to compensation in pursuance of this Article may for the purposes of this Article and in respect of the offices or each of the offices (as the case may be) held by him be deemed to be a whole-time officer employed at the net salary or remuneration (after deducting any expenses or payments for assistance or otherwise) received by him in respect of that office.

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

A.D. 1921.
Neath Order.

(5) Where any such officer as aforesaid was temporarily absent from his employment whilst serving in His Majesty's Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the Local Authority during the war such period of temporary absence shall also be reckoned as service under the Local Authority in whose employment he was immediately before and after such temporary absence and the amount of his salary wages and emoluments during such temporary absence shall be deemed to be the amounts which the officer would have received from the Local Authority during that period if he had remained in the actual service of the Authority Provided that this sub-division of this Article shall not apply to any officer who after the Armistice voluntarily extended his term of service in the forces.

(6) Any compensation payable to any officer or servant shall be paid out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications.

(7) The non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(8) If any officer or servant to whom this Article applies is at any time within five years after the commencement of this Order required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which he is required to perform at the commencement of this Order he may within that period relinquish his office and any officer or servant who so relinquishes his office shall be entitled to compensation in accordance with the provisions of this Article.

(9) For the purposes of subdivision (2) of this Article any clerk to justices officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(10) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.

55.—(1) Every vestry clerk assistant overseer collector of poor rates or other officer or servant employed at the commencement of this Order in or for the purposes of the Parish of Briton Ferry or of any existing parish included in the area of the Borough for the purposes of or in connection with the assessing levying or collection of rates or otherwise shall be transferred to and become officers or servants of the Corporation but the Corporation may abolish the office or employment of any such officer or servant whose office or employment they deem unnecessary.

A.D. 1921.
Neath Order.
 Transfer of
 assistant
 overseers
 and other
 officers.

(2) If any Officer of any Authority to which the Poor Law Officers' Superannuation Act 1896 applies is under this Order transferred to the Corporation and has made the annual contribution required to be made under that Act the provisions of that Act shall apply subject to such modifications as the Minister of Health may by order direct for the purpose of making that Act applicable to the case Provided that "emoluments" shall mean the net pecuniary gain or profit (after deducting any expenses or payments for assistance or otherwise) accruing to or made by the officer by reason of or from his office.

(3) The contributions which have been made by any such officer as aforesaid for the purpose of the Poor Law Officers' Superannuation Act 1896 shall be paid to the Corporation by the Guardians from whose service he shall be transferred to the service of the Corporation.

(4) The provisions of subdivisions (2) to (10) inclusive of Article 54 of this Order shall with the necessary modifications apply with respect to every officer transferred under this Article Provided that no such officer as aforesaid shall be entitled to claim or receive both compensation under the provisions of the said Article and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

56.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Aberavon Corporation the Briton Ferry Council or the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

A.D. 1921. commencement of this Order) entered into or made by the
Neath Order. Aberavon Corporation the Briton Ferry Council or the Rural
 Council or their predecessors in relation exclusively to any
 part of the added areas shall be of as full force and effect
 against or in favour of the Corporation of the Borough and may
 be continued and enforced as fully and effectually as if instead
 of the Aberavon Corporation or the Briton Ferry Council or the
 Rural Council or their predecessors the Corporation had done
 or suffered the same or been a party thereto.

*Borrowing
 powers for
 purposes of
 Order.* 57. For the purpose of defraying any expenses under
 this Order which in the opinion of the Minister are properly
 chargeable to capital the Corporation may borrow according
 and subject to the provisions and restrictions of the Public
 Health Act 1875 and may mortgage the borough fund and
 borough rate of the Borough for the purpose of securing the
 repayment of any moneys so borrowed and the interest thereon :

Provided that all such moneys shall be repaid within such
 period not exceeding thirty years from the date of borrowing
 the same as the Corporation with the sanction of the Minister
 may determine.

*Saving for
 powers of
 Minister or
 County
 Council.* 58. Nothing in this Order shall be construed as restricting
 the powers of the Minister under the Acts relating to the Relief
 of the Poor or the powers of the Minister or of the County
 Council under the Act of 1888 or the Act of 1894.

*Parliamen-
 tary polling
 districts.* 59. Nothing in this Order shall affect the powers of the
 County Council under Section 31 of the Act of 1918 or any
 order or scheme made by the County Council for the division
 of the Parliamentary County of Glamorgan into polling districts
 and the appointment of polling places for parliamentary
 elections.

*Saving for
 Neath
 Harbour
 Commis-
 sioners.* 60. Nothing in this Order shall affect the limits for the
 execution of the Neath Harbour Acts 1843 to 1901 or the
 constitution powers or duties of the Neath Harbour Commis-
 sioners under those Acts.

*For the
 protection of
 the Great
 Western
 Railway
 Company
 and others.* 61.—(1) The owner or the occupier of any land within the
 added areas covered with water or used only as a canal or towing
 path for the same or as a railway constructed under the powers
 of any Act of Parliament for public conveyances shall in respect of
 such part of any borough rate as shall be levied for the purposes
 of meeting expenses which but for the provision in the existing
 Borough whereby such expenses are payable out of the borough
 fund and borough rate would have been payable out of the
 district fund and general district rate under the Public Health
 Act 1875 be entitled to be assessed to the borough rate in the

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

proportion of one-fourth part only of the net annual value of the said land. A.D. 1921.

The net annual value of such land shall be ascertained by the valuation list for the time being in force within the Borough. *Neath Order.*

(2) For the purposes of section 133 of the Lands Clauses Consolidation Act 1845 in the added areas there shall be excluded from the borough rate the expenses incurred by the Corporation as aforesaid.

(3) In the case of any demand on any railway company entitled to partial exemption in accordance with the provisions of subdivision (1) of this Article it shall be the duty of the town clerk of the Borough on the application of such railway company to furnish within seven days to such company full particulars in writing showing the exemption to which the said company is entitled as aforesaid.

(4) If any question shall arise between the Corporation and any owner or occupier of any land mentioned in subdivision (1) of this Article as to the right of such owner or occupier to such partial exemption or as to the amount thereof or to any question in relation thereto the same shall be referred to a court of quarter sessions whose decision shall be final.

62.—(1) The power of the Briton Ferry Council to appoint a school governor for the Neath County School District under the Scheme of the Sixteenth day of December One thousand nine hundred and twelve regulating the Glamorgan Intermediate and Technical Education Fund shall be transferred to and vested in the Corporation without prejudice to the tenure of office of any school governor appointed by the Briton Ferry Council in office at the commencement of this Order. *Intermediate and Technical Education Scheme.*

(2) Save as aforesaid nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment. *Ecclesiastical divisions and charities.*

63. This Order may be cited as the Neath (Extension) Order 1921. *Short title.*

[Ch. civ.] *Ministry of Health* [11 & 12 GEO. 5.]
*Provisional Orders Confirmation (Aberavon and
Neath Extension) Act, 1921.*

A.D. 1921.
Neath Order.

The SCHEDULE.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
5 & 6 Wm. IV. c. liii. -	An Act for removing the markets held in the Town and Borough of Neath in the County of Glamorgan and for providing a new market place in the said town in lieu thereof.
24 & 25 Vict. c. xlv. -	Neath Water Supply ^o Act 1861.
28 & 29 Vict. c. cxli. -	Neath Water (Extension) Act 1865.
29 & 30 Vict. c. ccxviii.	The Neath New Gas Act 1866.
36 & 37 Vict. c. xxxiii.	The Neath Gas Act 1873.
37 & 38 Vict. c. c. -	Neath Corporation Gas Act 1874.
48 & 49 Vict. c. clxxxvi.	The Neath Waterworks Act 1885.
57 & 58 Vict. c. lxxxiii.	The Neath Corporation Water Act 1894.
60 & 61 Vict. c. lv. -	The Neath Corporation Tramways Act 1897.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
36 & 37 Vict. c. cxvii.	The Tramways Orders Confirmation Act 1873.	The Neath and District Tramways Order 1873.
39 & 40 Vict. c. xcii.	The Gas and Water Orders Confirmation (Chapel-en-le-Frith &c.) Act 1876.	The Neath Water Order 1876.
56 & 57 Vict. c. cxv.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893.	Provisional Order relating to the Borough of Neath.
1 Edw. 7. c. xxxvii.	Electric Lighting Orders Confirmation (No. 2) Act 1901.	The Neath (Borough) Electric Lighting Order 1901.
1 Edw. 7. c. xli.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901.	The Neath Order 1901.

[11 & 12 GEO. 5.] *Ministry of Health* [Ch. civ.]
*Provisional Orders Confirmation (Aberavon and
 Neath Extension) Act, 1921.*

PART II.—CONFIRMATION ACTS—continued.

A.D. 1921.

Neath Order.

Session and Chapter.	Short Title.	Order thereby confirmed.
7 Edw. 7. c. cli.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1907.	The Neath Order 1907.
8 Edw. 7. c. cxlvi.	The Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908.	The Neath Order 1908.
3 & 4 Geo. 5. c. xxiii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1913.	The Neath Order 1913.
5 & 6 Geo. 5. c. iii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1915.	The Neath Corporation Water Order 1915.
10 & 11 Geo. 5. c. cxiii.	Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920.	The Neath Order 1920.

Given under the Official Seal of the Minister of Health this
 Thirteenth day of May One thousand nine hundred
 and twenty-one.

(L.S.)

H. W. S. FRANCIS
 Assistant Secretary Ministry of Health.

Printed by EYRE and SPOTTISWOODE, LTD.,
 FOR
 WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
 Acts of Parliament.

To be purchased through any Bookseller or directly from
 H.M. STATIONERY OFFICE at the following addresses :
 IMPERIAL HOUSE, KINGSWAY, LONDON, W.C.2, and 28, ABINGDON STREET, LONDON, S.W.1;
 37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
 23, FORTH STREET, EDINBURGH;
 or from EASON AND SON, LTD., 40 and 41, LOWER SACKVILLE STREET, DUBLIN.

